

GRADE APPEALS

Purpose:

Faculty members are primarily responsible for the assessment of student academic performance, including the assignment of grades. Under normal circumstances, faculty members are the sole judge of grades to be received by students in a course based on their evaluation of students' true merit. This policy provides orderly procedures to protect against prejudice or capricious academic evaluations and to address those rare situations in which a student believes that the grade assigned by a faculty member is wrong based on the application of inappropriate criteria used to determine a grade, or that the faculty member did not adhere to stated procedures or grading standards.

Scope:

This policy applies only to final grades issued after the completion of a course. Grades awarded for assignments or parts of a course may not be appealed and are not subject to review, except to the extent that they may impact the appeal of a final course grade.

Policy:

Grading Policies:

- A. Faculty are responsible for communicating grading policies at the start of each course.
- B. Students are responsible for ensuring they are familiar with and understand the grading policies of their courses, and, therefore, are encouraged to ask questions of their instructors, as necessary.
 - 1. when students have questions about (including disagreement with) a grade they have received, they should consult first with the course instructor.
 - 2. Lack of knowledge of published grading policies shall not be grounds to appeal a grade.

Grounds for Appeal and Time Frame:

- A. A student may appeal a grade for any of the following reasons:
 - 1. The faculty member departed from the standards for calculating a grade as set forth in the course syllabus, without a reasonable academic reason.
 - 2. The grade was assigned based on an error in calculation.
 - 3. The grade was assigned based on unfair or capricious reasons.
- B. Grade appeals are expected to be resolved within thirteen (13) weeks following the beginning of the semester after a grade was officially posted. Time frames and all

deadlines in this Policy may be extended under extraordinary circumstances at the sole discretion of the Dean. Extraordinary circumstances include but are not limited to, temporary withdrawal from the University, hospitalization, and residence overseas where communication may be limited.

Consultation with Faculty:

- A. A student who disputes a course grade must consult the faculty member who assigned the grade no later than ten (10) calendar days after the start of the academic semester after the grade was assigned to discuss the concern. The student should be prepared to discuss the grounds for appeal of a grade, any information in support of an adjusted grade, and a requested resolution.
 - 1. The faculty member will meet with the student and provide an explanation for the assigned grade.
 - 2. The faculty member will be receptive to a grade change based on a convincing argument for doing so.
 - 3. The faculty member will respond to the student's request with a decision no later than fifteen (15) calendar days after being initially contacted by the student.

Appeal to Department Chair or Program Director:

- A. If a student is unable to resolve a grade dispute with the faculty member, the student may initiate a grade appeal by filing a written notice of a grade appeal with the chair of the department or director of the program in which the grade was assigned within ten (10) calendar days after being informed of a decision on a requested grade change by the faculty member who assigned the grade.
 - 1. The written notice of grade appeal must identify the grounds for the appeal as defined in this Policy and must provide any underlying support for the grade appeal.
 - 2. If the Department Chair or Program Director determines that the grade appeal is not based on at least one of the three (3) grounds for appeal provided in this Policy, the chair or director shall dismiss the appeal and the matter will be resolved.
 - 3. If the Department Chair or Program Director determines that the grade appeal is based on at least one of the three (3) grounds provided in this Policy, the chair or director will provide the faculty member with a copy of the written grade appeal within three (3) calendar days. The faculty member may submit a written response to the student's notice of grade appeal to the chair or director within ten (10) days of receiving a copy of the student's written appeal.
 - 4. The Department Chair or Program Director shall consult with the student and the faculty member to resolve the appeal. The chair or director may also consult with faculty with expertise in the related discipline. No

personally identifiable student information will be disclosed during such consultation in the absence of a legitimate educational reason.

5. Following review and consultation, the Department Chair or Program Director will issue a written decision related to the grade appeal which may either:
 - a. affirm the grade as assigned by the faculty member; or,
 - b. confirm a compelling reason to change the grade based on a written explanation and inform the faculty member of the need to change the grade.
6. In instances when a chair/director is the instructor of the course (or has a family connection to the instructor of the course such as spouse, partner, family member, ex-spouse, or ex-partner), where the grade is in question, the student appeal should be made to the Associate Dean of Faculty in the cognate division who will appoint another tenured member of the faculty from the same department or program to hear the appeal.

Appeal to the An Ad Hoc Committee:

- A. A student may appeal the written decision of the Department Chair or Program Director, by submitting a written notice of appeal to the Associate Dean of Faculty of the division in which the course is offered. The written notice must be submitted no more than five (5) days after delivery of the written decision of the Department Chair or Program Director.
- B. A faculty member may appeal the decision to change a grade by the chair or director by submitting a written notice of appeal to the Associate Dean of Faculty of the division in which the course is offered. The written notice must be submitted no more than five (5) days after delivery of the written decision of the Department Chair or Program Director.
- C. The Associate Dean of Faculty will convene an Ad Hoc Faculty Committee composed of Department Chairs or Program Directors who will review the student's or faculty member's appeal and, as necessary, consult with the student, the faculty member, and the faculty member's Department Chair or Program Director.
 1. If circumstances necessitate, the Ad Hoc Faculty Committee can request an independent evaluation of the student's work by another faculty member with expertise in the discipline.
- D. Committee Composition
 1. A minimum of three Department/Program Chairs shall participate on the Ad Hoc Committee with at least one member from the same division as the instructor and one member representing a different College from the faculty member and student.

- a. The Ad Hoc Committee will designate a convenor who will be responsible for organizing the work of the committee and communicating with the relevant parties.
- 2. Faculty members may not be selected to serve on the Ad Hoc Committee if,
 - a. The faculty member has previously submitted to the Board of Review a charge of academic irresponsibility against the student appealing.
 - b. The student has previously submitted a grade appeal for a course taught by a proposed committee member.
- E. E. Following review and consultation, the Ad Hoc Faculty Committee will issue a written decision related to the grade appeal which may:
 - 1. Affirm the grade as assigned by the faculty member; or,
 - 2. Determine that compelling reasons exist to change the grade, provide the faculty member with written explanation for change of grade, and direct the chair or director to submit a grade change.
- F. The Ad Hoc Committee will be recalled by the Dean of the relevant College in the event of new information that is brought to light that has bearing on the decision (see Appeal to the Dean of the College Based on Procedural Error).
- G. The decision of the Ad Hoc Committee may only be appealed to the Dean in the case of a procedural error.

Appeal to the Dean of the College Based on Procedural Error/New Information:

- A. A student or faculty member may appeal the written decision of the Ad Hoc Faculty Committee for the following reasons:
 - 1. The student or faculty member produces previously unavailable relevant information that would likely have significantly impacted the previous decisions on the grade appeal.
 - 2. Procedural errors were committed in the grade appeal process that would have significantly impacted the decisions on the grade appeal.
- B. The Dean must respond to the request for appeal within 10 days
- C. The Dean may consult with the student, the faculty member, the Department Chair or Program Director and/or the Associate Dean of Faculty to resolve the appeal.
- D. In the case of a grade appeal based on procedural error:
 - 1. if the Dean determines that there were no procedural errors, the decision of the Ad Hoc Faculty Committee will be upheld.

2. if the Dean determines that procedural errors occurred or that new information relevant to the case has appeared, the appeal will be considered anew.
 - a. The Dean may either send the appeal back to the Ad Hoc Faculty Committee or request the formation of a new Ad Hoc Faculty Committee, which will respond to the new information within ten (10) calendar days of formation.
- E. The written decision of the Dean will be provided to the student, faculty member, the Department Chair or Program Director and the Associate Dean of Faculty within ten (10) days of the filing of the appeal.
- F. The decision of the Dean is final and not subject to further review.

Failure of Response:

Documentation of all formal grade appeals, including procedural appeals will be maintained permanently as part of the student's education record in the Registrar's office. If any person, whether student, faculty or administrator, fails to respond to requests made as part of the grade appeal process within ten (10) calendar days of the request, the appeal may move forward without the requested response or information.